
MEMORANDUM

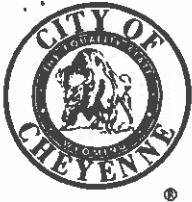
TO: Mayor Patrick Collins, and City Council
FROM: TJ Barttelbort, Purchasing Manager 
DATE: September 15, 2025
SUBJECT: Consideration to Purchase between the City of Cheyenne, and KONE, Inc., for the George Cox Parking Facility Elevator Modernization

Consideration to Purchase between the City of Cheyenne, and KONE, Inc., for the George Cox Parking Facility Elevator Modernization.

This purchase is to refurbish the elevator at the Cox Parking Facility.

The total amount of the purchase is \$207,420.00

Funding: 020-26-1412-40-21601 (1% Sales Tax 19-22 / Maintenance)
\$207,420.00



Facilities 176 Sales Tax Coverage
(2019-2022) \$859,769 Balance

REQUEST FOR SOLE/SINGLE SOURCE PURCHASE

020-26-1412-40-21601

DIRECTIONS:

Complete this form for all purchase requests with a sole/single source vendor. Send to the Purchasing Office before purchasing the item(s) along with the letter from the vendor indicating they are the sole/single supplier. If over \$74,999.99, attach a copy of the legal ad and place on council.

Name: Steve Gaer

Date: 5/27/25

Division/Department: Public Works/Facilities

ITEM DESCRIPTION: Refurbish the elevator at the Cox Garage.

AMOUNT OF PURCHASE: \$207,420.00

STATE REASON FOR SOLE OR SINGLE SOURCE PURCHASE (CIRCLE ONE):

The contractor who services the elevator should do the refurbishment.

Signature of Requesting Individual: Steve Gaer

DIVISION/DEPARTMENT HEAD APPROVAL:

Name: Vicki Nemecsek

Date: 5-27-2025

COMMENTS: Approved

For Purchasing Office use only:

Sole/Single Source Letter Attached: Yes / No / NA

Legal Ad Attached: Yes / No / NA

Finance Dates: 10/8/2025

City Council Dates: 9/22/2025 & 10/13/2025

Received On:

TJ B. [Signature]

REQUEST TO PURCHASE OVER \$75,000.00

Consideration to Purchase between the City of Cheyenne, and KONE, Inc., for the George Cox Parking Facility Elevator Modernization. The total amount of the purchase is \$207,420.00. This is a single source purchase, therefore no bids were requested.

This will be reviewed by the City Council Finance Committee on October 8, 2025 and voted on at the October 13, 2025 City Council meeting.

TJ Barttelbort, Purchasing Manager

City of Cheyenne, Wyoming

(307) 773-1045

Handwritten signature of TJ Barttelbort in black ink.

Published in: Wyoming Tribune-Eagle

Dates: September 18 & 25, 2025

May 23, 2025 (September 15, 2025 Revision)

APPROVED as to form only:

By John Brodie at 11:51 am, Sep 15, 2025

City of Cheyenne
2101 O O'Neil Ave
Cheyenne, WY 82001

ATTN: Shawn Fredrickson

KONE Inc.

8585 Concord Center Drive,
Suite 900
Englewood, Colorado 80112
Tel : (307) 757-0232
Email: Jeff.Clark@kone.com

Re: George Cox Parking Elevator Modernization (REVISED)

Description of Work

We propose to furnish and install the labor, materials, tools and supervision to perform the following work on the passenger elevator located at the George Cox Parking.

Elevator Controller:

Hydraulic Smartrise microprocessor Controller equipped with the following characteristics will be installed:

- Solid state soft starters in lieu of y-delta starters
- Controller cabinet outlet plug
- Interface for voice annunciator
- Group box interface so both controllers can communicate with each other on dispatching calls
- Door interface to communicate with new GAL door equipment
- Hall lantern interface to communicate with innovation signal fixture equipment
- Machine room to hoistway wiring package- 100 feet of wiring
- Traveling cable package- Twenty-six conductor composite 14 AWG, fourteen 18 AWG & four 20 AWG shielded pairs all jacketed in protective rubber coating. Includes kellum grips to hang onto cars.
- Pre-wired car top inspection stations
- Interface for car call security
- Emergency battery lowering



Power Unit Replacement:

We will furnish and install a new submersible hydraulic power unit. The motor and pump will be submersed under the oil inside the tank in order to provide for sound isolation. A muffler, designed to reduce pulsation and noise, which may be present in the flow of hydraulic oil, will be provided in the oil line at the top of the pump.

Control valves, including a safety check valve, an up direction valve with high pressure relief including up leveling and soft stop features and a lowering valve, including down leveling and a manual leveling feature, will be mounted in a compact unit assembly. A shut off valve, designed to shut off the flow of oil between the cylinder and the power unit, will be provided in the oil line in the machine room. Automatic two-way leveling will be provided to automatically stop and maintain the car approximately level with the landing, regardless of change in load.



Benefits:

- Improves ride quality and smoother starts & stops throughout the ride
- Improves passenger and tenant satisfaction by reducing noise pollution and vibration
- Improves reliability and availability - reduces service interruptions
- Reduces operating expenses for service requests not covered under your agreement
- Improves parts availability for power units which are obsolete and parts that are not readily available
- Improves leveling - minimizes the risk of tripping hazards which improves safety and reduces claims risk

Comprised of four major components – the tank, valve, pump and pump motor – which operate together to control the oil flow required to move and stop the elevator. Improper operation by any of the components in the power unit can result in more shutdowns, safety tripping hazards, entrapments, slower performance, uncomfortable start/stop & ride and more.

Proactive Replacement

- Avoids unplanned disruption
- Minimizes disruption, as your elevator is operational while components are shipped. Downtime becomes just days for the upgrade, rather than weeks for the component leadtimes
- Improves tenant experience by allowing you to schedule this at the best time and provide advance notice

Complete Replacement

- Upgrading the entire power unit at once is more cost effective and efficient than upgrading the components individually
- Power units come packaged as a unit which are 'born' together. Upgrading individual components and introducing new components with older components may cause problems

Hydraulic Shut Off Valve

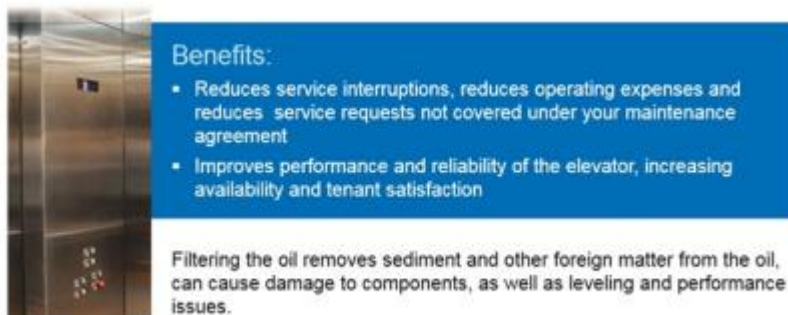
We will furnish and install a hydraulic oil line shut off valve in the elevator machine room which allows the technician to isolate leaks in troubleshooting, decreasing downtime during hydraulic leak repairs.



Hydraulic Fluid Replacement

We will provide a repair crew to hang the elevator, remove the old worn-out hydraulic fluid and clean the hydraulic system. We will replace with new hydraulic fluid throughout the system.

Once this work has been completed, we will perform a safety test of the elevator to ensure the valve, pump, and all safety circuits are operable. Once this work has been completed it should alleviate the recurring issues being faced.



Complete Machine Room / Hoistway Wiring

With the new controller we will replace all the wiring. This includes the travel cable wiring and hoistway wiring. Wiring will include spare wires for future use if needed for security or camera installation.



Benefits:

- Reduces service interruptions and downtime
- Increases availability and reduces operating expenses
- Improves tenant satisfaction
- Increases safety and reduces claims risk
- Required by code

Provides the vital link between the car and controller. If the existing travel cable has been immersed in water and/or oil, the polyvinyl chloride coating will begin to dry out and crack, potentially resulting in intermittent service interruptions and creating a safety risk. Additionally, excessive downtime may be required to troubleshoot these intermittent interruptions and the life expectancy of the existing travel cable will be greatly reduced. If upgrades have been made additional spare wires may be required.

Elevator Door Equipment:

- New car side interlock switches
- 1 hand held adjusting tool w 7' cable per elevator
- New hangers, tracks and headers for the car side
- New clutch to mount onto the car door
- New pickup rollers to be mounted on each hoistway door
- New interlocks on the hoistway doors
- NOTE- New doors on both car & hoistway side are NOT included



HATCH DOOR HANGERS

The GAL Hatch Door Hanger is a sturdy and dependable option for hatch doors – American-made, durable, and engineered to sustain long-term operation. The complete assembly kit and adjustment settings offer easy installation and maintenance, while code-mandated safety retainers prevent any accidental vertical movement.



INTERLOCKS

The GAL Interlocks are mechanical door safety locks crafted to provide complete peace of mind, with a set of proven features that ensure a smooth and risk-free door operation. Designed to withstand impact, temperature variations, mechanical stresses, moisture and ground short circuits, our Interlocks are CSA and UL approved and have been the preferred choice for American elevator professionals for more than seventy years.



DOOR CLOSERS

GAL Door Closers are the ideal choice for fulfilling the code-required hoistway closing function that all elevators need. This critical component provides complete peace of mind by ensuring passenger safety through its automated closing function, and is available for all major door types.



CLUTCHES

A reliable clutch mechanism can save lives. GAL™ Door Clutches are constructed from heavy mass cast aluminum and cold rolled steel, enabling them to endure millions of cycles of repeated, heavy use over several years of operation.



Elevator Signal Fixtures:

Car Station (buttons, etc. inside of elevator):

- 1) Stainless steel vandal resistant buttons w outer white illumination (pictured below)
- 2) Cover plate finish of stainless steel #4 brush
- 3) Flush Wurtec phone mounted behind the car station
- 4) 1 digital position indicator w 2" red characters per elevator if present
- 5) 1 ¼" square, #4 stainless steel braille in black
- 6) Push buttons = alarm, door open, door close, phone push to call button and hall calls
- 7) Key switches = Emergency stop switch, light switch, fan (2 speed) switch, independent service, emergency light test switch, hoistway access switch & universal FEOK1 phase II fire service key switch
- 8) Engravings = "Phase II fire service instructions, capacity # & elevator number.
- 9) Misc. = Buzzer for fire service & nudging, floor passing signal (in digital PI), fireman's service cabinet, emergency LED lighting & voice annunciator -

Hall stations (buttons, etc. outside in hallway):

- 1) Two terminal hall stations UP button on level "1" WITH FEOK1 fire service key switch
- 2) One intermediate hall station (front & rear) with UP and DOWN button on level 2
- 3) Stainless steel round projecting buttons w outer white illumination
- 4) Each button equipped with 1 ¼" square, #4 brushed stainless-steel braille on black
- 5) Hoistway access key switches on levels 1 & 3

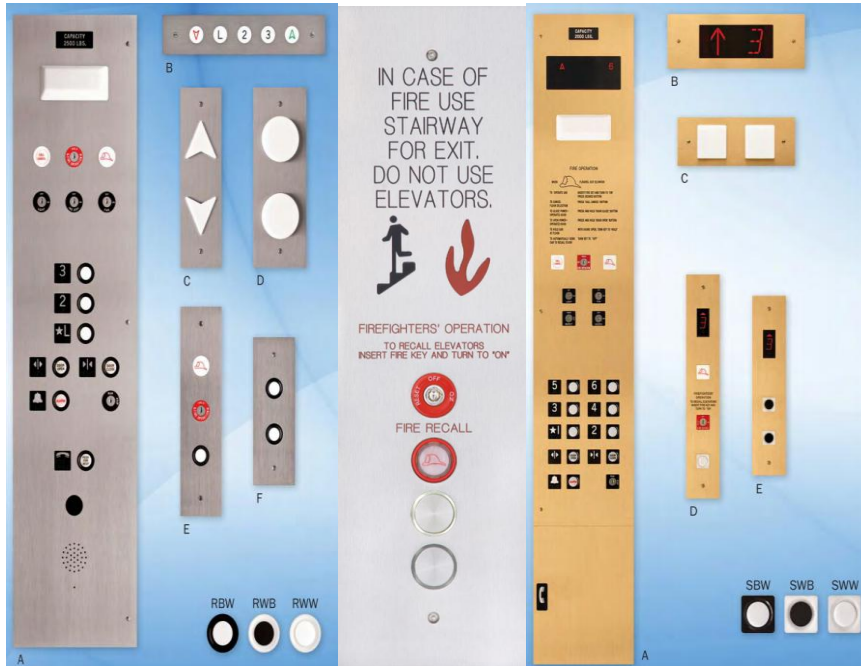
Hall lanterns/Position indicators (arrows/numbers outside in hallway located above door):

- 1) One terminal-up hall lantern on floor 1 if existing
- 2) One intermediate hall lantern on floor 2 if existing
- 3) One terminal-down hall lantern on floor 3 if existing
- 4) All hall lanterns will be faced with #4 SS plates and have a 2 ½" projecting arrow w LED white lighting

Misc. items included in the signal fixtures

- 1) Digital PI controller / Encoder / Driver- MCCA (Component used to communicate w controller)
- 2) Jamb braille tags. 4" x 4", adhesive backed, #4 stainless steel on black- Currently, no jamb braille exists. This would be required per code. This is the numbers that would be stuck to each side of any hall entrance indicating what floor it is.

Sample Fixtures



New 3D Door Protection Device:



Benefits:

- Increases safety – doors reopen without making contact with passengers, therefore reducing claims risks.
- Eliminates passenger contact with the doors, reducing potential service interruption
- Increases elevator availability – less door related problems reduces elevator downtime
- Reduces operating expenses – fewer service requests not covered under your maintenance agreement
- Enforces the code

Price

Our total price to perform the above-mentioned work amounts to: \$207,420.00 and includes taxes, if applicable.

Our price includes applicable labor, material and permit fees. This proposal is not binding on KONE until approved by an authorized KONE representative. Pricing is subject to KONE's attached Terms and Conditions for tendered repairs and, by signing below, Purchaser hereby agrees to these Terms and Conditions. Price is valid for 30 days from the date of this proposal.

This price does not include "work by others" if needed, or work that is building related that the City of Cheyenne may request once elevator permits are pulled.

THE CUSTOMER UNDERSTANDS THAT THIS IS A FIXED PRICE PROPOSAL. SUPPORTING DOCUMENTATION FOR MATERIALS AND/OR LABOR SHALL NOT BE A CONDITION PRECEDENT IN ORDER FOR PAYMENT IN FULL TO BE MADE TO KONE.

Down Payment:

The above quoted price is based on a 50% down payment of \$103,710.00, due before the order will be processed. Once the proposal is signed and loaded into our system a down payment invoice will be issued. KONE reserves the right to delay ordering of material or commencing work until down payment is received. In the event the order is cancelled by the Customer, Customer shall reimburse KONE for all work performed and materials ordered as of the date of cancellation and Customer shall pay KONE a cancellation fee of 50% of the order.

ACCEPTANCE: The foregoing Agreement is hereby signed and accepted in duplicate on behalf of **CITY OF CHEYENNE**

Respectfully submitted by,
KONE Inc.

(Signature)

Jeff Clark, Sales & Operations Manager

(Print Name)

(Approved By) Authorized Representative

(Print Title)

Title

Date: ____ / ____ / ____

Date: ____ / ____ / ____

TERMS AND CONDITIONS

This proposal is subject to the following terms and conditions, all of which are hereby agreed to:

KONE shall submit invoices for the value of material delivered and/or labor performed, less the down payment paid at the time of proposal acceptance. A final invoice shall be issued by KONE upon completion of the work and shall include all balances due. Purchaser agrees to pay the amount of any tax imposed by any existing law, or by any law enacted after the date of this Agreement, based upon the transfer, use, ownership or possession of the equipment involved in the services rendered herein. KONE reserves the right to discontinue our work at anytime until we have assurance, satisfactory to us, that payments will be made as agreed. Final payment shall become due and payable upon completion of the work described in this Agreement. Failure to pay any sum due to KONE within thirty (30) days of the invoice will be a material breach. A delinquent payment charge calculated at the rate of 1½ % per month, or if such rate is usurious then at the maximum rate under applicable law, shall be applied to the delinquent payments. In the event of default on the payment provisions herein, Purchaser agrees to pay, in addition to any defaulted amount, all attorney fees, collection cost or court costs in connection therewith. The machinery, implements and apparatus furnished hereunder remain KONE's personal property and KONE retains title thereto until final payment is made, with right to retake possession of the same at the cost of the Purchaser if default is made in any of the payments, irrespective of the manner of attachment to the realty, the acceptance of notes, or the sale, mortgage or lease of the premises.

The states requiring notice prior to filing a lien, this notice requirement is hereby complied with.

KONE shall not be liable for damage or delay caused directly or indirectly by accidents, embargoes, strikes, lockouts, work interruption or other labor dispute, fire, theft, floods, or any cause beyond KONE's control. Regardless of the type of delay, KONE shall not be liable for any indirect, consequential, or special damages including but not limited to fines, penalties, loss of profits, goodwill, business or loss of use of equipment or property.

Purchaser agrees to provide safe access to the equipment and machine room areas. Should conditions develop beyond KONE's control, making the building or premises in which KONE's personnel are working unsafe, KONE reserves the right to discontinue work until such unsafe conditions are corrected. Should damage occur to KONE's material or work on the premises, by fire, theft, vandalism, or other causes beyond KONE's reasonable control, Purchaser shall compensate KONE for such damage.

Any asbestos removal necessitated by work described in this Proposal will be the Purchaser's responsibility. Purchaser shall provide documentation that the asbestos has been abated from the KONE work area and air clearance reports shall be made available upon request. Purchaser is responsible for all costs of oil disposal should it be determined that oil from Purchaser's equipment is contaminated.

KONE undertakes to perform this work in conformity with the usual applied codes and standards, however, no guarantee can be made that all code violations or defects have been found. This work is not intended as a guarantee against failure or malfunction of equipment at any future time.

It is agreed and understood that KONE is not responsible for damages, either to the vertical transportation equipment or to the building, or for any personal injury or death, arising from or resulting from any code required safety tests performed on this equipment.

Nothing in this agreement shall be construed to mean that KONE assumes any liability of any nature whatsoever arising out of, relating to or in any way connected with the use or operation of the equipment described above. Purchaser shall be solely responsible for the use, repair and maintenance of the equipment and for taking such steps including but not limited to providing attendant personnel, warning signs and other controls necessary to ensure the safety of the user or safe operation of the equipment.

Neither KONE nor its affiliates, subsidiaries or divisions shall be responsible or liable for any damages, claims, suits, expenses and payments on account of or resulting from any injury, death or damage to property arising or resulting from the misuse, abuse or neglect of the equipment herein named or any other device covered by this contract.

Purchaser shall at all times and at Purchaser's own cost, maintain liability coverage covering bodily injury and property damage with the limits of liability Purchasers customarily carry arising out of the services provided under this Authorization and/or the ownership, maintenance, use or operation of the equipment described herein.

It is agreed and understood that Purchaser is solely responsible for ongoing maintenance and care of the equipment described above. IT IS EXPRESSLY UNDERSTOOD, IN CONSIDERATION OF OUR PERFORMANCE OF THIS WORK THAT PURCHASER ASSUMES ALL LIABILITY FOR THE USE, MAINTENANCE OR OPERATION OF THE EQUIPMENT DESCRIBED ABOVE AND FOR ANY INJURY, INCLUDING DEATH, TO ANY PERSON OR PERSONS AND FOR DAMAGE TO PROPERTY OR LOSS OF USE THEREOF, ON ACCOUNT OF OR RESULTING FROM THE PERFORMANCE OF THE WORK TO BE DONE. NEITHER PURCHASER OR KONE INDEMNIFIES THE OTHER AND BOTH SHALL BE RESPONSIBLE FOR THEIR OWN ACTIONS AS LONG AS THOSE ACTIONS ARE IN ACCORDANCE WITH STANDARD OPERATING PROCEDURES. Purchaser hereby waives any and all rights of recovery, arising as a matter of law or otherwise, which Purchaser might now or hereafter have against KONE Inc.

KONE warrants the materials and workmanship of the equipment for ONE (1) year after completion. Purchaser's remedy is limited to repair or replacement of a defective part, in KONE's sole discretion. The warranty is limited to the replacement or repair of the part itself, and labor. In no event shall KONE be responsible for damage due to normal wear and tear, vandalism, abuse, misuse, neglect, work or repairs or modifications by others, or any other cause beyond the control of KONE. KONE disclaims any other warranty of any kind, either expressed or implied, including without limitation the implied warranties of merchantability or fitness for a particular purpose, or noninfringement.

Unless otherwise agreed, it is understood that the work shall be performed during regular working hours of regular working days of the elevator trade. If overtime work is mutually agreed upon and performed, the additional price, at KONE's usual rates for such work, shall be added to the contract price herein named.

It is expressly understood and agreed all prior agreements written or verbal regarding the subject matter herein are void and the acceptance of this Agreement shall constitute the contract for the material and work specified in this Agreement. Any changes to this Agreement must be made in writing and signed by both parties.

The terms and conditions set forth herein shall constitute the complete agreement for any work performed, AND shall prevail over and supersede any terms and conditions contained in any documents provided by the Purchaser.

The Purchaser, along with its officials and employees, does not waive its governmental immunity by entering into this Agreement, except to the extent necessary for the parties to pursue a contract action to clarify or enforce the written terms of the Agreement. Furthermore, Purchaser specifically retains all immunities and defenses available to it as a governmental entity pursuant to Wyo. Stat. § 1-39-101, *et seq.*, and all other relevant state and federal law. Nothing contained in this agreement should be constructed as a waiver of governmental immunity."

The Purchaser does hereby agree the exclusive venue for any dispute between the parties shall be in the county Laramie, WY.